

2:00 PM

LINE 13

24-CLJ-07826

BANK OF AMERICA, N.A. VS. ASHWIN L SINGH

BANK OF AMERICA, N.A.
ASHWIN L SINGH

BRIAN LANGEDYK
PRO SE

MOTION FOR ORDER THAT MATTERS IN REQUEST FOR ADMISSION OF TRUTH OF FACTS BE DEEMED ADMITTED

TENTATIVE RULING:

The court GRANTS plaintiff Bank of America, N.A.'s unopposed motion to deem facts admitted.

The court notes that the notice states that the hearing will be held on the First Floor, Room A of 400 County Center, Redwood City, CA 94063, but Room A is the clerk's office. Department 4 is located in Courtroom 4C on the fourth floor.

On January 22, 2025, plaintiff served by mail defendant Ashwin L. Singh with requests for admissions. (Declaration of Audrey Calderson, ¶ 2, Ex. 1.) More than thirty-five days have passed and there have been no responses. Accordingly, pursuant to Code of Civil Procedure section 2033.420, the court deems the requests admitted. Plaintiff shall attach the requests for admission to the proposed order.

Plaintiff did not request sanctions and thus none are awarded.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for plaintiff shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM

LINE 14

25-CIV-00194

DAVID BERNARD PARVIN VS. SANDEEP KHANNA, ET AL.

DAVID BERNARD PARVIN
SANDEEP KHANNA

NELSON W GOODELL
PRO SE

MOTION FOR FEES AND COSTS AGAINST DEFENDANT SANDEEP KHANNA PURSUANT TO CODE OF CIVIL
PROCEDURE § 405.38

TENTATIVE RULING:

The Motion of Plaintiff David Bernard Parvin (“Plaintiff”) for Fees and Costs Pursuant to Code of Civil Procedure Section 405.38 is DENIED.

As a procedural matter, the court continued this Motion from February 10, 2026 so that it could first rule on Defendant Sandeep Khanna’s (“Defendant”) Motion for Reconsideration of the Order Denying Defendant’s Motion to Expunge the Lis Pendens. Thereafter, Plaintiff filed and served a supplemental declaration seeking additional attorney’s fees for the Motion for Reconsideration as well as a Notice of Supplemental Authority. Defendant subsequently brought an ex parte application seeking to file and serve a limited response to Plaintiff’s Supplemental Declaration and Notice of Supplemental Authority only. The court granted the ex parte application permitting Defendant a limited response, and also allowing Plaintiff a reply. (See Order filed March 24, 2026.) However, Defendant’s supplemental response exceeds the scope of the court’s March 24, 2026 Order as does Plaintiff’s supplemental reply. As such, the court disregards any arguments that are not directed to issues specifically addressing Plaintiff’s Supplemental Declaration and Notice of Supplemental Authority.

Plaintiff brings this Motion seeking attorney’s fees and costs of \$118,599.70 as the prevailing party after the court denied Defendant Sandeep Khanna’s (“Defendant”) Motion to Expunge Plaintiff’s Lis Pendens. (See Defendant’s Request for Judicial Notice, Exh. 4.) The court found that Plaintiff proved by a preponderance of the evidence for the motion to expunge the validity of the claim that Defendants did not comply with the requirements of Civil Code section 2924m and that this failure was unfair competition because it took away the opportunity for people who wanted to live in the house to bid on the property. (*Ibid.*) The court also ruled that Plaintiff was the prevailing party on the underlying motion to expunge. (*Ibid.*)

“The court shall direct that the party prevailing on any motion under this chapter be awarded the reasonable attorney’s fees and costs of making or opposing the motion unless the court finds that the other party acted with substantial justification or that other circumstances make the imposition of attorney’s fees and costs unjust.” (Code Civ. Proc., § 405.38.) This attorney’s fees provision was enacted to control misuse of the lis pendens procedure. (*Castro v. Superior Court* (2004) 116 Cal.App.4th 1010, 1022.) The Legislature did not define the term “substantial
